

The Harbour Craft Rules for the Port of Madras, 1935

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The Harbour Craft Rules for the Port of Madras, 1935

UNION OF INDIA

India

The Harbour Craft Rules for the Port of Madras, 1935

Rule THE-HARBOUR-CRAFT-RULES-FOR-THE-PORT-OF-MADRAS-1935 of 1935

Published on 2 July 1935

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The Harbour Craft Rules for the Port of Madras, 1935

2035.

Notification No. 363, dated 2nd July, 1935. - In exercise of the powers conferred by sub-section (1) of Sec. 6 of the Indian Ports Act, 1908 (15 of 1908), and in suppression of all previous rules on the subject, the Governor in Council is hereby pleased to make the following rules for licensing and regulating catamarans plying for hire, and flats and cargo, passenger and other boats plying whether for hire or not, and whether regularly or only occasionally, in or partly within and partly without the Port of Madras and for licensing and regulating the crews of any such vessels and for determining the quantity of cargo or number of passengers or of the crew to be carried by any such vessels, and for regulating the berths which such vessels shall occupy in the said port.

Rules

Part 1 ? General Rules

1.

Short title and application.

(1)

These rules may be called the Harbour Craft Rules for the Port of Madras, 1935.

(2)

They shall apply to the Port of Madras.

2.

Savings.

-Nothing contained in these rules shall apply to any craft coming from any system of Inland Navigation into the Port of Madras.

3.

Definitions.

-In these rules, unless there is anything repugnant in the subject or context

(a)

"harbour craft" means catamarans plying for hire and flats and cargo, passenger and other boats, whether propelled by oars or mechanical power and plying, whether for hire or not, and whether regularly or only occasionally.

(b)

"Port" means the Port of Madras;

(c)

"Registering Officer" means the Deputy Conservator of Port of Madras; and

(d)

"tindal" includes any person in charge of a harbour craft.

4.

Harbour craft plying within the Port to be licensed.

-No person shall, whether as owner or as servant, use any harbour craft to carry goods or passengers to or from any ship or vessel at the Port or from place to place within the limits of the Port unless such person holds a licence in the form in Appendix A granted by the Registering Officer and unless the harbour craft so used has been registered. For purposes of registration the owner of a harbour craft shall cause it to be brought to such place as the Registering Officer may appoint.

Nothing in this rule shall apply (i) to boats forming part of the equipment of a ship or steamer, or (ii) to harbour craft maintained solely for purposes of pleasure :

Provided that the Registering Officer may, if he thinks fit, withdraw this exemption from any such harbour craft.

5.

Minor or female owners.

-If the owner of a harbour craft is a minor, the licence may be obtained by the guardian of the minor. If the owner is a woman, who, according to the custom of the country, does not appear in public, the licence may be obtained on her behalf by her duly authorized agent. In such cases the guardian or the agent shall be deemed to be the owner for the purposes of these rules.

6.

Licence to be produced on demand.

-The owner of every registered harbour craft shall keep its licence in the possession of the tindal who shall produce the licence whenever called upon to do so by the Registering Officer or by any person duly authorized by him in that behalf. A printed copy of these rules and any written directions issued by the Registering Officer for carrying the same into effect shall also be furnished by the owner to the tindal who shall, on demand, show it to any consignor or passenger by such harbour craft. The owner shall be responsible for securing that the tindal understands the said rules and directions, shall obtain a declaration from him to that effect and shall produce such declaration, whenever required by the Registering Officer.

7.

Distinctive numbering of harbour craft.

-Every owner of a registered harbour craft, other than a catamaran used exclusively for fishing, shall paint or cause to be painted upon a black ground in white English figures, not less than 6 inches in length on a conspicuous part of the

bow of such harbour craft on one side and of the quarter on the other, the number and tonnage of the harbour craft as mentioned in the licence. No person shall paint or cause to be painted upon any harbour craft not duly registered any such number as aforesaid or any other mark likely to induce the belief that such harbour craft has been registered.

8.

Change of ownership or control of harbour craft

- No registered harbour craft

(a)

which has changed ownership or

(b)

which has been mortgaged by the owner or otherwise passed from his control, shall ply, in case (a) without a fresh licence being obtained and in case (b) without either a fresh licence being obtained or the original licence being endorsed by the Registering Officer, within six days after the change of ownership or control.

9.

Changes in crew or carrying capacity of harbour craft to be reported.

- Whenever the tindal of any registered harbour craft is changed or any alteration in such craft is made so as to affect any of the particulars contained in the licence granted for it, such change or alteration shall be forthwith reported by its owner to the Registering Officer. In case of change of tindal or of any alteration in the harbour craft not affecting its carrying capacity, the harbour craft shall not ply until such report is made and in case of change of tindal, until the new tindal has also been produced before the Registering Officer. On such report and production, as the case maybe, the Registering Officer shall amend the original licence held by the owner and in case of change of tindal, also the register kept under rule 10.

In case of any alteration in the harbour craft affecting its carrying capacity, the original licence held by the owner shall be cancelled and a fresh licence issued by the Registering Officer after the harbour craft has been re-measured, and the harbour craft shall not ply until such fresh licence has been issued :

Provided that if any harbour craft was away from the port at the time when such change or alteration takes place, the change or alteration shall be reported to the Registering Officer immediately on its return to the Port.

10.

Registration of harbour craft's tindals.

-At the time of registration of any harbour craft under rule 4, the name of its tindal as entered in the licence and other particulars relating to him shall be entered in a book which shall be kept by the Registering Officer for the purpose in the form in Appendix B.

Every year in the month of January, on a date to be fixed by the Registering Officer, the owner of every registered harbour craft shall produce before the Registering Officer the tindal of such harbour craft with a view to the correctness of the entries in the register being verified by the Registering Officer :

Provided that if such harbour craft is away from the Port on the date fixed for production of the tindal, the owner shall produce the tindal within 24 hours after the return of the harbour craft to the Port.

11.

Annual and special inspection of harbour craft and crew.

-Every year in the month of January, the owner of every registered harbour craft shall produce it together with its licence for inspection by the Registering Officer at such place as he may appoint for the purpose. In addition to such inspection, special or partial inspections may be held by the Registering Officer or by any person duly authorised by him, at such times as the Registering Officer may consider necessary.

At all inspections under this rule, the harbour craft shall have its full complement of crew and equipment and no person who is not certificated person as required by these rules, or who, in the opinion of the Registering Officer is unaccustomed to the use of the craft or is inefficient shall be employed or registered as a tindal.

12.

Repairs of harbour craft ordered on inspection.

-The owner of every registered harbour craft shall execute such repairs thereto as the inspecting officer may direct in order to render it efficient, and no owner or other person shall use any such harbour craft or cause or permit it to be used until such repairs have been duly executed and the Registering Officer has granted permission for its use. For the purpose of such repairs, the owner shall cause the harbour craft to be hauled up only to such place or places as the

Registering Officer may, from time to time, direct.

13.

Harbour craft to ply with complement of crew and tindal responsible for proper working of harbour craft.

-The owner of every registered harbour craft shall provide it with such full complement of crew and with such equipment as may be determined by the Registering Officer and entered in the licence. The tindal of the harbour craft shall not have on board more or less than the number of the crew prescribed in the licence for fine or rough weather according as the harbour craft plies in fine or rough weather and shall not carry passengers or goods in excess of the number or quantity entered in the licence for the harbour craft and shall make full delivery of the cargo entrusted to him.

14.

Traffic not to be obstructed.

-No tindal or number of the crew serving in any registered harbour craft shall, without reasonable excuse, obstruct or hinder the loading, discharging or service of such harbour craft or of any other harbour craft or vessel or obstructed or hinder the steamers working in the port or the traffic of vessels in the Port generally.

15.

Harbour craft not to obstruct vessels and boats.

-All harbour crafts shall keep out of the way and shall not obstruct or hinder the movements

(a)

of vessels manoeuvring into or out of or within the harbour; or

(b)

of boats employed in passing lines to the buoys or quays.

16.

Refusal to ply without lawful excuse.

- If the owner or the tindal in charge of a registered harbour craft plying regularly for hire, without reasonable excuse, of which the Registering Officer shall, subject to the appeal provided in rule 26, be the sole judge, refuse to allow such harbour craft to ply for hire when required to do so, the licence of such harbour craft shall be liable to be revoked.

17.

Working of the harbour craft in bad weather.

- No registered harbour craft shall ply without the special permission of the Registering Officer, when the signals indicating bad weather or high sea are displayed from the Harbour Office flagstaff. When the great danger signal is hoisted all small craft and lighters shall at once go into Springhaven Basin for safety.

18.

Permissible load of harbour craft.

(1)

No person shall load a registered harbour craft with passengers or with animals or other cargo in contravention of the terms of its licence.

(2)

No tindal of any registered harbour craft shall permit any animal to be loaded in it, unless the harbour craft has been provided with sand ballast or straw sufficient to form a flat floor and unless such other requirements as may be imposed by the Registering Officer in respect of the harbour craft have been complied with.

(3)

Where animals are carried in a registered harbour craft, no other cargo or passenger shall be carried therein.

(4)

Passengers and cargo other than animals may be carried at the same time only in a registered harbour craft propelled by mechanical power.

19.

Owner or tindal to prevent overloading.

- Whenever the number of passengers or the quantity of cargo in a registered harbour craft exceeds the number or the quantity entered in the licence, the owner, or, in the absence of the owner, the tindal, shall, before starting from the vessel or from the shore, require any passenger to leave the harbour craft or any consignor, consignee, or shipping or landing agent concerned to remove from the harbour craft the whole or any part of the cargo.

20.

Harbour craft not to interfere with moorings or with vessels before they anchor.

- No tindal or other person in charge of or navigating any registered harbour craft shall

(a)

attempt to make such harbour craft fast to any mooring buoy or quay in such a manner as to obstruct the use of such mooring buoy or quay by a steamer, or

(b)

take it alongside a steamer approaching an anchorage or mooring berth before such steamer has come to anchor or been secured in her berth.

21.

Landing and shipping of passengers and goods to be within Port limits.

(1)

All passengers governed by Part IV of the Indian Merchant Shipping Act, 1923 (21 of 1923), or the Indian Emigration Act, 1922 (7 of 1922), shall use the Springhaven steps when embarking or disembarking not directly at a quay but by a harbour craft. Officers and crews of vessels in the harbour and first and second class passengers by such vessels may use either the Springhaven steps or the Anchor steps opposite the Harbour Office.

(2)

All passengers with the exception of those specified in sub-rule (1) and all goods shall be landed or shipped in such places within the limits of the Port as the Chairman of the Madras Port Trust Board may appoint and no person shall land or ship passengers or goods outside such limits unless the sanction of the Registering Officer and the Customs Officer at the Port has been previously obtained.

(3)

If the owner or tindal of any licensed harbour craft is convicted by a Magistrate for landing or shipping passengers or goods in contravention of sub-rule (1) or sub-rule (2), the licence of the harbour crafts shall be liable to be revoked by the Registering Officer.

22.

Harbour craft to keep clear of vessel's gangways.

- No harbour craft shall be alongside any vessel within the Port longer than is necessary to embark or disembark its passengers and luggage. Every harbour craft not engaged on embarking or disembarking passengers or luggage from a vessel shall be off at a distance of not less than 20 feet from the side of such vessel so as to leave a clear passage to and from the gangway; and no harbour craft shall come to or approach a vessel's gangway contrary to the orders given by the Police or a responsible officer on board the vessel that is being approached.

23.

Harbour craft to approach or leave vessel's gangway by turns.

- All harbour craft waiting to approach or go alongside a vessel on its arrival shall keep well abaft the gangway ladder so as to be approximately parallel to each other and to the vessel concerned. All harbour craft shall take their turn in coming to and leaving the gangway of each vessel approached and shall obey all orders given by the Police Officer on board.

24.

Rates of hire.

- No owner of any registered harbour craft licensed to ply for hire and no person deputed by an owner of such harbour craft to carry any cargo or passengers for hire, shall demand a rate of hire exceeding that sanctioned by the Central Government for the carriage of any such cargo or passengers. No owner and no tindal or member of the crew of such harbour craft shall demand or accept any gratuity or present from the passengers therein during the course of its trip between ship and shore or from place to place whether within or without the Port limits.

25.

Revocation of licence.

(1)

If the owner of any licensed harbour craft commits a breach of any of the rules in this Part or Part II, or commits a breach of any of the conditions of the licence, the Registering Officer may revoke the licence held in respect of such harbour craft after giving the owner an opportunity of being heard:

Provided that no such opportunity shall be given in cases where the owner has been convicted by a court for any

breach under this sub-rule.

(2)

The Registering Officer may require the owner of a licensed harbour craft to dispense with the services of any person employed by him as a tindal or a member of the crew, if such tindal or member has been convicted by a court for any breach referred to in sub-rule (1), and on the owner refusing to do so, the licence shall be liable to be cancelled.

26.

Appeal from Registering Officer's decision.

- An appeal shall lie from any of the decisions of the Registering Officer upon any matter arising in connexion with any of the rules, in this Part or in Part II to the Conservators of the Port. Such appeal shall be preferred in writing within seven days after the decision of the Registering Officer has been communicated in writing to the party or parties concerned. The decision of the Conservators of the Port thereon shall be final.

27.

Fees for survey, registration, licensing, inspection and endorsing change of tindals.

- The following fees shall be leviable for the survey, registration, licensing, inspection and endorsing change of tindals of harbour craft of all kinds.

Harbour

craft other than canoes, shoe dhonies and catamarans

Canoes

and shoe dhonies

Catamarans

plying for hire

Rs.

nP.

Rs.

nP.

Rs.

nP.

For

each survey and measurement as required by the Harbour Craft

Rules provided the harbour craft is found seaworthy

2.00

1.00

On

each occasion of a harbour craft being found unseaworthy on being

inspected or surveyed

1.00

0.50

For

registration on each of the occasions prescribed by the Harbour

Craft Rules

2.00

1.00

1.00

For

granting a licence on each of the occasions prescribed by the

Harbour Craft Rules

2.00

1.00

1.00

For

each annual inspection provided the harbour craft is found

seaworthy

2.00

1.00

1.00

For

endorsing change of tindal

0.50

0.25

0.25

Note. - (1) The fees leviable under this rule shall be increased by twenty-five per cent.

(2)

No fees shall be levied for amending a licence or register.

(3)

Half the fee prescribed by this rule shall be levied for the grant of a duplicate licence when it has been proved to the satisfaction of the Registering Officer that there is good and sufficient reason for such grant.

28.

Grant of licence to harbour craft in the discretion of the Conservators.

- Before granting or refusing to grant a licence to any harbour craft under the foregoing rules, the Conservators of the Port shall have regard to the number of harbour craft registered in the Port at the time and to the needs of and the accommodation in the Port. The grant or refusal of a licence to any harbour craft shall be entirely in the discretion of the Conservators.

29.

Berth to be occupied by harbour craft.

- Every harbour craft which has been licensed in accordance with these rules shall, when not plying, occupy only such berth within the limits of the Port as may be assigned to it by the Registering Officer.

Unlicensed harbour craft shall not occupy a berth within the limits of the Port without the special permission of the Registering Officer.

Part II ? Special Rules Applicable to Certain Harbour Craft

Section A

Fishing Boats or Catamarans

30.

Licensing of fishing boats.

- Every boat (including a catamaran plying for hire) not exclusively used for fishing, shall be registered and the owner of every such boat shall obtain a licence and every such boat other than a catamaran, shall carry on one of its sails and on each of its sides a number to be assigned to it by the Registering Officer at the time of registration together with the name of the Port, namely, Madras, and no person shall use any such boat for the purpose of fishing until it has been registered and a licence obtained for it, and in the case of a boat other than a catamaran, until a number and the name of the Port have also been placed upon it as described above.

31.

Fishing boats or catamarans not to go near a cargo harbour craft or alongside a ship or steamer.

(1)

No tindal or other person in charge of or navigating a registered cargo harbour craft shall allow a fishing boat or a catamaran to be within ten yards of her when such cargo harbour craft is plying between the ship and shore.

(2)

No person in charge of or navigating a fishing boat or a catamaran shall allow it to go alongside a steamer or ship while discharge or shipping of cargo is proceeding.

(3)

Any tindal who is found by the Registering Officer to have contravened the provision of sub-rule (1) or (2) may be prohibited from further employment in any capacity on any registered harbour craft, and if any owner employs such tindal in contravention of such prohibition, all or any of the licences issued to him may be revoked.

(4)

The licence of any boat which is found by the Registering Officer to have contravened the provision of sub-rule (1) or (2) shall be liable to be revoked.

Section B

Vessels propelled by mechanical power

32.

Definitions.

- In this Section

(i)

"steam vessel" means a vessel propelled wholly or in part by the agency of steam, and

(ii)

"motor vessel" means a vessel, other than a steam vessel, propelled wholly or in part by electricity or other mechanical power.

33.

Qualifications of officers on steam vessels.

- Every boat which is a steam vessel, shall, when in use, whether plying for hire or not, have on board a Master as well as an Engineer possessing certificate of competency to act as Master or Engineer, as the case may be, of such a boat granted in accordance with such rules as may be prescribed by the Central Government in this behalf or being certified officers possessing the qualifications specified below-

Type

of vessel

Certificate

required

Act

under which certificate must be held

(1)

IN THE CASE OF THE MASTER

Vessel

of 50 tons burden or more.

First

or Second Class Master or Master

Indian

Steam Vessels Act, 1917 (1 of 1917).

Indian

Merchant Shipping Act, 1923 (21 of 1923) or

Merchant

Shipping Act, 1894 (57 and 58 Vict. C. 60) or

Ceylon

Ordinance No. 7 of 1863 as amended by Ceylon Ordinance No. 3 of 1888 for Masters and Mates.

Vessel

of less than 50 tons burden

First

or Second-class Master or Master

Inland

Steam-Vessels Act, 1917 (1 of 1917).

Inland

Merchant Shipping Act, 1923 (21 of 1923) or

Merchant

Shipping Act, 1894 (57 and 58 Vict. C. 60) or

Ceylon

Ordinance No. 7 of 1863 as amended by Ceylon Ordinance No. 3 of

1888 for Masters and Mates.

or

Syrang

Inland

Steam-Vessels Act, 1917 (1 of 1917).

or

Launch

Tindal

Ceylon

Ordinance No. 11 of 1907 for Tindals and Syrangs.

(2)

IN THE CASE OF THE ENGINEER

Vessel

having engines of 100 n.h.p. or more irrespective of tonnage.

Engineer

Indian

Steam-Vessels Act, 1917 (1 of 1917). or Indian Merchant

Shipping Act, 1923 (21 of 1923) or

Merchant

Shipping Act, 1894 (57 and 58 Vict. C. 60).

or

First-Class

Engine Driver

Indian

Steam-Vessels Act, 1917 (1 of 1917)

or

Engine

Driver.

Indian

Merchant Shipping Act, 1923 (21 of 1923).

Vessels

having of less than 100 n.h.p. irrespective of tonnage.

Engineer

Inland

Steam-Vessels Act, 1917 (1 of 1917) or Indian Merchant Shipping

Act, 1923 (21 of 1923) or

Merchant

Shipping Act, 1894 (57 and 58 Vict. C.60).

or

First-Class

Driver

Engine

Inland Steam-Vessels Act, 1917 (1 of 1917).

or

Engine

Driver

Indian

Merchant Shipping Act, 1923 (21 of 1923).

or

Second

-Class Engine Driver.

Inland

Steam-Vessels Act, 1917 (1 of 1917).

34.

Qualifications of officers on motor vessels.

- Every boat having on board any engine driven by electricity, oil or petrol shall, when in use, whether plying for hire or not, have on board a Master as well as an Engineer possessing certificates of competency to act as Master or Engineer, as the case maybe, of such a boat granted in accordance with such rules as may be prescribed by the Central Government in this behalf or being certificated officers possessing the qualifications specified below.

Type

of vessel

Certificate

required

Act

under which certificate must be held

(1)

IN THE CASE OF THE MASTER

Vessels of 50 tons

burden or more if, engine are used
for propulsion.

First or

Second-Class Master or Master.

Inland

Steam-Vessels Act, 1917 (1 of 1917)

Indian Merchant

Shipping Act, 1923 (21 of 1923) or

Merchant Shipping

Act, 1894 (57 and 58 Vict. C. 60) or

Ceylong Ordinance

no. 7 of 1863, as amended by Ceylon Ordinance No. 3 of 1888 of
Masters and Mates.

Vessels of less

than 50 tons burden, if engines or are
used for
propulsion.

First or Second

Class Master

Indian

Steam-vessels Act, 1917 (1 of 1917)

Master

Indian Merchant

Shipping Act, 1923 (21 of 1923) or Merchant Shipping Act, 1894 (57
and 58 Vict. C. 60) or Ceylon Ordinance No. 7 of 1863 as amended
by Ceylon Ordinance No. 3 of 1888 for Masters and Mates.

or

Syrang

Inland Steam

Vessels Act, 1917 (1 of 1917)

or

Launch Tindal

Ceylon Ordinance

No. 11 of 1907 for Tindals and Syrang

(2)

IN THE CASE OF THE ENGINEER

Vessels having

engines of 565 b.h.p. or more, irrespective of tonnage.

Motor Engineer

Inland Steam

Vessels Act, 1917 (1 of or 1917).

First Second class

Indian Merchant

Shipping Act, 1923

Engineer of

Sea-going motorship

(21 of 1923) or

Merchant Shipping Act, 1894 (57 and 58 Act C. 60).

Vessels having of

226 b.h.p. or more but of less than 565 b.h.p. irrespective to tonnage

Motor Engineer

Inland

Steam-Vessels Act, 1917 (1 of or (1317).

First Second class

Engineer of sea-going motor ship

Indian Merchant

Shipping Act, 23 (21 of 1923) or Merchant Shipping Act 1894 (57 and 58 Vict. C. 60).

or

First class Engine

Driver

Motor Inland Steam

Vessels Act, 1917 (1 of 1917).

or

Engine Driver of

sea going motor ship

Indian Merchant

Shipping Act, 1923 (21 of 1923).

Vessels having of

less than 226 b.h.p. irrespective of tonnage.

Motor Engineer

Inland Steam

Vessels Act, 1917 (1 of 1917)

or

First or

Second-class Engineer of sea-going of going motor ship

Indian Merchant

Shipping Act, 1923 (21 1923) or Merchant Shipping Act 1894 (57 and 58 Vict. C. 60).

Vessels having

engineers of less than 226 b.h.p. irrespective of tonnage.

First class Motor

Engine Driver

Inland Steam

Vessels Act, 1917 (1 of 1917)

or

Engine Driver of

sea

Indian Merchant

Shipping Act, 1923 (21 of 1923).

or

Second-class Motor

Engine Driver

Inland Steam

Vessels Act, 1917 (1 of 1917).

Provided that:-

(i)

A vessel carrying engines of a total of less than 20 b.h.p. which cannot be used to propel the vessel shall have on board as driver, whenever the engines are used, a person who has satisfied the Registering Officer, that he is competent to be in charge of the engines.

(ii)

A motor vessel of not more than 40 b.h.p. may have as her Engineer a person holding a permit granted by the Central Government under such conditions as they may prescribe.

(iii)

A motor vessel of not more than 20 b.h.p. the length of which measured from the fore-part of the stem to the after-part of the stem post does not exceed 30 feet may have as her Master and Engineer a person possessing both the certificate required in the case of a Master of a motor vessel of less than 50 tons burden whose engines are used for propulsion and the certificate required in the case of an Engineer of a motor vessel having engines of less than 226 b.h.p. irrespective of tonnage.

(iv)

An inland motor vessel of not more than 20 b.h.p. the length of which measured as aforesaid does not exceed 30 feet, which is used exclusively for personal recreation by the owner or his family or friends need not carry a certificate of Master or Engineer but may be navigated by the owner or any other person in charge of such vessel possessing a permit granted by the Central Government or by any person duly authorized by the Central Government in this behalf.

34.

-A.

Any person who has served as master, syrang, engineer or engine driver of a steam or motor vessel plying in the Port, for a period of three years on the 1st June 1946, and is not in possession of the certificate of competency required under rule 33 or rule 34, as the case may be, may be granted by an officer duly authorized by the Central Government in this behalf, without examination and on payment of the fees prescribed by the Central Government, a certificate of service to the effect that he is, by reason of his having so served, competent to act as master, syrang. engineer or engine-driver on board such steam or motor vessel plying in the port and thereupon such person shall be deemed to be competent to act in such capacity for the purposes of these rules.

35.

Fee for survey of a steam or motor vessel.

- Every application made to the Registering Officer for a licence for a steam or motor vessel in respect of which a certificate of survey under the Indian Merchant Shipping Act, 1923 (21 of 1923), or the Inland Steam-Vessels Act, 1917 (1 of 1917), is not held by the owner or master shall be accompanied by a fee of Rs. 50 for surveying the vessel.

Note. - The fees leviable under this rule shall be increased by twenty-five per cent.

36.

Extension of time for the existing Masters or Engineers to qualify.

(1)

For a period of two years from the commencement of these rules, the requirements of rules 33 and 34 shall not apply to officers employed on steam or motor vessels if they are in possession of the certificate prescribed for them by the rules which were in operation immediately before the commencement of these rules.

(2)

Power of Central Government to exempt vessels from rules 33 and 34-The Central Government may in special circumstances.

(a)

exempt any specified steam or motor vessel or any specified class of steam or motor vessels from the requirements of rule 33 or rule 34, as the case may be; and

(b)

lay down the qualifications required of the officers employed on such vessel or classes of vessels.

37.

Fire extinguishing appliances on motor vessels.

- Every motor vessel shall be provided with a sand box and an approved patent fire extinguisher of suitable capacity for extinguishing fire. The owner of such vessel shall keep it free from oil refuse.

Appendix A

[See rule 4]

Licence granted to owner of harbour craft measuring

Licence granted to owner of harbour craft measuring feet long feet broad and feet deep Registered tons

To carry cargo (other than animals) passengers or animals to the extent specified below to and from the shipping at or off the Port of Madras under the restrictions and subject to the penalties laid down in the Harbour Craft Rules for the Port of Madras, 1935.

Cargo

without passengers

Particulars

respecting the owner or owners of the harbour craft.

Particulars

respecting the the harbour craft particulars of the harbour craft.

Date

of registry

Name,

number and description of harbour craft

Rig

and equipment

When

built and where

When

repaired last and in what presumed weight

Number

of animals and presumed weight

Weight

of cargo other than animals

Number

of passengers without cargo

Number

of crew

Name

or names

Occupation

Place

or Place of residence

Name

Place

or residence

Period

for which the licence is to be in force

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

In

fine weather

In

fine weather

In

fine weather

In

fine weather Tindal, Lascars

In

rough weather

In

rough weather

In

rough weather

In

rough weather Tindal Lascars

Date

19.....

Extebded

to 31stDecember 19....

Registering

Officer

Do

Do

Do

Do

Endorsement

for change of

Tindals.

Note? Two children under 12 years of age=one adult.

Appendix B

[See rule 10]

Register showing the names, ages, place of residence and thumb-impressions of tindals employed in the Port of Madras for the year 19.

Date

of registry

Number

of harbour craft

Names

Age

Place

of residence

Thumb

impressions

Remarks

Years

Months

Days

Related AI tags, queries and research notes

Translation